

temperature, as it was an essential parameter for the test in question. Consequently, the skilled person would immediately consider that "F" meant "Fahrenheit" and make the correction accordingly.

In T 657/11 the board held that the requested correction was obvious. It could not accept the argument of the respondent that the correction was not obvious because the wrong wording of the claim was also to be found in one passage of the description as filed. In fact, apart from this one passage, the rest of the description, the working examples and the figures were in line with the perceived correction. The board also excluded another possible correction because, although theoretically and technically possible, the skilled person would immediately reject it.

In T 141/14 the board held that the amendment of the feature "vanadium" to "vanadium oxide" did not meet the requirements of R. 139 EPC because the proposed correction was only **one of several options** which would occur to the skilled person. As long as there was at least one further possibility of correction, the criterion within R. 139 EPC that "the correction must be obvious in the sense that nothing else would have been intended than what is offered as the correction" was not fulfilled.

In T 606/90 the board allowed a correction pursuant to R. 88, second sentence, EPC 1973, in the opposition proceedings although the correction was not so obvious from the published text of the patent that it was immediately evident that nothing other than the proposed correction could have been intended. The applicant had filed typed amendments to the claims and the description and had also submitted the "working document" with the handwritten corrections for the dossier. The typed version of claim 1 omitted the detail which was now the subject of a request for correction pursuant to R. 88 EPC 1973; the same detail was present in the corresponding passage in the description. When the text was being prepared for publication of the patent, the detail in question was also omitted from the description owing to an **error by the EPO**. The board concluded that the omission in the description should not be taken into account when considering the admissibility of the correction. The reader of the patent would immediately have noticed the need for correction of the error in claim 1 if a transcription error had not likewise been committed by the EPO.

In T 244/19 the appellant (patent proprietor) had argued that it was obviously an error that original claim 6 referred back to just one of the two independent product claims. The board, however, did not consider it immediately evident that nothing other than a reference to both could have been intended.

4.3. No replacement of the description under Rule 139 EPC

Decision G 2/95 (OJ 1996, 555) decided that the complete documents forming a European patent application could not be replaced under R. 88 EPC 1973 (R. 139 EPC). In J 16/13 the board held that this equally applied to the exchange of a description. This followed from the principle that the filing date is inseparable from the description, since it is obvious that allowing an exchange of "only" the description by way of correction would directly result in the separation of the filing date from the description.

According to T.1963/17, the reason for this is simply that in light of the infinite possibilities of drafting a description, it is not obvious to a skilled person how an amended description should look like. The board observed that in the case in hand, in which the originally filed description did not match the claims and applicant requested to substitute the originally filed description, it may not even have been obvious to a skilled person which invention the applicant intended to pursue. Moreover, the board agreed with J.27/10 that an interpretation of R. 56 EPC that some, or all, of the description that was originally filed in order to obtain a filing date could be amended, replaced or deleted is incorrect. See also chapter IV.A.5.4.2.

4.4. Request for correction to be filed without delay

In T.2058/18 the board noted that a request for correction must be filed without delay (G.1/12, OJ 2014, A114, point 37 of the Reasons). The appellant's (applicant's) representative pointed out that he was not an expert in the field of the invention and that it was only when consulting an expert that could qualify as a skilled person in this case, that the representative was made aware that there was a mistake in the description and claims as originally filed. He had reacted during examination proceedings as soon as he was made aware of the mistake. However, the board observed that the applicant had previously based its arguments on the erroneous features as essential distinguishing features of the invention over the closest prior art. The board underlined that it was the responsibility of the appellant to cooperate in the drafting and filing of amendments and to give clear instructions to the representative. Thus the correction could not be considered as having been filed without delay.

4.5. Correction of errors in the description, claims and drawings after grant, and in opposition proceedings

In J.42/92 the board had to decide whether a request under R. 88, second sentence, EPC 1973 could be made after grant. It came to the conclusion that a request under R. 88 EPC 1973 for amendments to the description or claims could only be filed **during the pendency of application or opposition proceedings**. Under Art. 97(4) EPC 1973, the decision to grant a European patent took effect on the date on which the European Patent Bulletin mentioned the grant. After this date, R. 88 EPC 1973 could only be applied while opposition proceedings were pending. In the case at issue, the decision to grant the patent had already taken effect, and no opposition had been filed. The appeal was therefore dismissed, since the EPO had ceased to have jurisdiction to consider a request under R. 88 EPC 1973 at the time when the request was filed (see also J.23/03 and T.493/08).

Note that G.1/10 (OJ 2013, 194) deals with the different fields of application of various provisions as compared with R.140 EPC (formerly R.89 EPC 1973), in particular R.139 EPC (points 9 and 11 of the Reasons) and Art.123 EPC (see point 13 of the Reasons).

In T.657/11 the board observed that according to G.1/10 R. 140 EPC was not available to correct the text of a granted patent and a request for such a correction was inadmissible

whenever made, including after the initiation of opposition proceedings (likewise T 2051/10, T 164/14, T 1578/13). However, in the case at issue, the amendments went beyond the mere removal of an error; namely by limiting the claims to those granted as (process) claims 6-11. Hence the basis for the decision on the appeal (and, thereby, on the opposition) was no longer that for the **decision to grant** the patent-in-suit, which decision would **definitely lose its effect** and be replaced by a new decision. In such a situation any (further) amendment of the claims, even if it aimed at the removal of an obvious mistake in the claims as granted, did not constitute a correction of an error or a mistake in a decision of the EPO within the meaning of R. 140 EPC. The board held that in opposition proceedings mistakes or errors concerning the claims, the description or the drawings of the patent as granted could be removed either by an amendment occasioned by a ground of opposition under Art. 100 EPC (see R. 80 EPC) or, insofar as the mistakes or errors concerned texts or drawings which remained unamended, by way of a correction pursuant to R. 139 EPC (which applied independently of R. 80 EPC; see also T 556/13). See also T 164/14 and T 1578/13, in which, however, the boards ultimately did not decide whether corrections could be made under R. 139 EPC in the conditions set out in T 657/11, because, in any event, the mistakes at issue in those cases were not obvious.

5. Evidence and standard of proof for allowing amendments and corrections

In accordance with the established case law of the boards of appeal, in the case of a proposed amendment under Art. 123(2) EPC or of a correction under R. 139 EPC, the factual disclosure of a European patent application as originally filed has to be established to a rigorous standard, namely the standard of certainty "beyond reasonable doubt". In T 1248/08 the board recalled this case law, in particular as established in T 113/86, T 383/88, T 581/91, T 723/02 and T 1239/03; for further decisions confirming this standard, see e.g. T 831/11, T 1710/13, T 2418/13, T 1224/14. According to T 307/05 and T 370/10, the same standard of "beyond reasonable doubt" applies when assessing the allowability of amendments under Art. 123(3) EPC. The burden of proof that amendments comply with Art. 123(2) EPC rests with the party making the amendment (T 910/06 with reference to T 1239/03; see also T 222/05 and T 1497/08).

In T 383/88 the board held that the normal standard of proof in proceedings before the boards, namely "the balance of probability", was inappropriate for determining the allowability of an amendment under Art. 123(2) EPC 1973. Instead, a rigorous standard, i.e. one equivalent to "beyond reasonable doubt" was considered by the board to be the right one to apply in such a case, since applying a lower standard could easily lead to undetected abuse by allowing amendments on the basis of ostensibly proven common general knowledge. T 383/88 also considered that the issue of the allowability of an amendment under Art. 123(2) EPC 1973 had to be decided by reference to what could be derived from the patent application as filed in the light of common general knowledge and not vice versa. Moreover, it was notoriously difficult to prove common general knowledge. For example, information might be generally disseminated, and therefore known within the community of skilled addressees, but it might well, at the same time, not be commonly accepted. The board added that it could not normally be the case that an affidavit by a single person was sufficient to discharge the burden of proof to the strict standard that was required (see also T 1046/96).

In T.795/92 the board stated that Art. 123(2) EPC 1973 clearly precluded allowing an amendment if there was any doubt as to whether or not it was derivable from the original application. In the case at issue, in spite of a certain probability in favour of the appellant's (patentee's) position, the amendment was not allowable because there were various known methods for calculating the value in question, not all leading to identical results, and the application did not directly and unambiguously disclose which method had to be used.

The board in T.307/05 stated that, as indicated in the decision T.64/03, it was established case law that a **very rigorous standard**, namely that of "beyond reasonable doubt", was to be applied when checking the allowability of amendments under Art. 123(2) and 123(3) EPC. A similar rigorous standard was also expressed in the decision T.581/91 relied on by the board in its communication by reference to the decision T.113/86, in which it was stated that the **slightest doubt** that the unamended patent could be construed differently to the patent as amended would preclude the allowability of the amendment (see also T.370/10, T.2285/09, T.2418/13). While it was true that, as argued by the appellant, decision T.113/86 referred to voluntary amendments requested by the patentee and not necessitated by any ground of opposition, the fact that the amendment would be, as in the present case, necessitated by a ground of opposition (i.e. Art. 100(c) EPC) could not, in the board's view, justify the application of a lower standard of proof than the one mentioned in that decision. On the contrary, a very rigorous standard was even more justified in the case in question, since allowing such amendments while using a lower standard of proof might give an unwarranted advantage to the patentee in the overcoming of a ground of opposition.

In T.1248/08, in the application as filed, a number pertaining to a value used in example 1 was illegible and indecipherable. It was not clear whether it should read "0.08" or "0.09", or even "0.05". The board was not persuaded by the appellant's arguments that the actual disclosure of that figure was unequivocal and that it read "0.09". The board held that the arguments of the appellant adopting proof "on the balance of probability", in particular a **survey**, had to fail. According to this survey – conducted amongst partners and staff at the firm of the appellant's representative – a total of 67 out of 72 test persons had indicated the relevant entry in Table 1 to be "0.09" without qualification. However, it was also found that two respondents had indicated another figure ("0.08") and that three further respondents who indicated "0.09" had also considered other possibilities. In the board's opinion, therefore, these results demonstrated that the value in question could not be considered to be "0.09" with a certainty "beyond reasonable doubt". In any event, a question of accuracy and disclosure could not be decided by a poll. With reference to G 11/91, the board also decided that the disclosure of the priority document could not be used to dispel doubts as to the meaning of an ambiguous part of the application. The same applied to the family documents, for the reason that the text of another patent application based on the same priority document did not need to be identical to the European patent application. See also T.2058/18.

In T.2275/17 the calculation method for a certain parameter was replaced by a specific value. The board agreed with the proprietor that no specific evidence had been presented to demonstrate that this shift in the scope of claim 1 necessarily led to a problem under

Art. 123(3) EPC. However, contrary to the proprietor's line of argument, it was not the opponent but the proprietor who, in the context in hand, bore the burden of proof that the amendments were allowable. In fact, even if, as proposed by the proprietor, the standards used to assess novelty were to be applied, the burden would still be on it because the amendment at issue involved changes in calculations relating to an unusual parameter (see T 1764/06 and T 1920/09), which made it all the more the proprietor's responsibility to dispel any possible doubt as to whether the the scope of protection had been extended.